Decisions log – rev. 3

Cid Clean LLC · Prepared 10/30/2026 · Maps the attorney's answers (questions 1–56 of pendientes_abogado.pdf) and the values the assistant chose where the attorney delegated ("let you decide the rest").
Attorney = attorney's answer · **Assistant** = assistant's recommendation (attorney delegated) · (interpreted) = short answer whose meaning had to be inferred.

General

#	Topic	Decision	By	Applied in
1	Language	English only for all documents; Spanish versions dropped; each document states it is provided in English only.	**Attorney**	All
2	Publishing new versions	Users are notified (app + email) and must accept the new version before continuing.	**Attorney**	Staff Terms C5, Privacy §11, app task 6

Staff Terms – contractors (1099)

#	Topic	Decision	By	Applied in
3	Classification risk of remaining app features	No concern raised ("No really"). Interpreted as: no further changes needed.	**Attorney** (interpreted)	Staff Terms B1
4	Who records the service day	Contractor marks it, admin approves; if no app access, admin does both.	**Attorney**	Staff Terms B2, ICA §4, Privacy §2
5	Accept/decline jobs, own tools, other work	Handled outside the app → moved out of the app terms into the Independent Contractor Agreement (right to decline, own tools, free to work for others).	**Attorney** / **Assistant**	Staff Terms B1, ICA §§1–3
6	Contractor agreement needed?	Attorney unsure; recommended and drafted: Independent Contractor Agreement (doc 6). Owner approved drafting.	**Assistant**	Doc 6
7	Electronic W-9 compliant / anything more needed?	Answer "No" read as "nothing more needed". Assistant added the IRS penalties-of-perjury certification wording and paper copy on request (Treas. Reg. §31.3406(h)-3(e)).	**Attorney** (interpreted) + **Assistant**	Staff Terms B3, app task 8

#	Topic	Decision	By	Applied in
8	Who can open the W-9 PDF	Administrators only, plus the contractor if given app access.	**Attorney**	Staff Terms B3/C2, Privacy §6

Staff Terms – employees (W-2)

#	Topic	Decision	By	Applied in
9	GPS consent via terms sufficient	Yes.	**Attorney**	Staff Terms A2
10	Employee declines location	Location required to clock in/out; no manual alternative.	**Attorney**	Staff Terms A2, Privacy §7, app task 4
11	Auto-logged scheduled hours	Valid; 1 week to request corrections; Florida minimum wage in effect at time of work (adjusted each Sept. 30, Fla. Const. Art. X §24) plus FLSA overtime.	**Attorney**	Staff Terms A3, app task 5
12	Phone reimbursement or device	Neither. (Assistant note: if required phone costs ever push an employee's pay below minimum wage, FLSA "free and clear" rules could require reimbursement.)	**Attorney**	Staff Terms A4

Staff Terms – everyone

#	Topic	Decision	By	Applied in
13	Handbook / contractor agreement vs. app terms	"Yes" read as: the handbook / contractor agreement controls over the app terms.	**Attorney** (interpreted)	Staff Terms §1
14	Consequence of falsifying records	3 written warnings, then separation.	**Attorney**	Staff Terms C3, ICA §10
15	User declines new version	Cannot use the app.	**Attorney**	Staff Terms C5, ICA §7
16	Clients see work photos? Social media?	Photos for administration only; not shared with clients; commercial and social-media use prohibited.	**Attorney**	Staff Terms C1, Privacy §§3–4, SOW A7, Agreement §10, ICA §8

#	Topic	Decision	By	Applied in
17	Breach-notice procedure	Per s. 501.171: notify individuals within 30 days; Florida Dept. of Legal Affairs within 30 days if 500+ Floridians; consumer reporting agencies if 1,000+.	**Assistant**	Staff Terms C2, Privacy §6

Insurance

#	Topic	Decision	By	Applied in
18	When workers' comp is required	Per Fla. Stat. ch. 440 (s. 440.02(17)(b)): non-construction employer with 4 or more employees (full- or part-time). Agreement promises WC "whenever required by Chapter 440".	**Attorney** (rule) + **Assistant** (wording)	Agreement §7
19	Contractors must carry GL?	No.	**Attorney**	ICA §6
20	Contractors must carry WC / exemption?	No.	**Attorney**	ICA §6
21	$1M/$1M GL limits sufficient	Yes.	**Attorney**	Agreement §7
22	Commercial / hired auto	No – removed.	**Attorney**	Agreement §7
23	Crime / janitorial bond	No – removed.	**Attorney**	Agreement §7
24	Additional insured	No – removed.	**Attorney**	Agreement §7

Retention

#	Topic	Decision	By	Applied in
25	Photos & W-2 GPS	3 years after the client becomes inactive (confirmed).	**Attorney**	Staff Terms C2, Privacy §5
26	W-2 hours & payroll	3 years after termination. (Assistant note: Florida minimum-wage claims have a 4-year limit, 5 if willful – the attorney's 3-years-after-termination period was kept.)	**Attorney**	same
27	1099 service days & payments	Same: 3 years after the relationship ends.	**Attorney** ("same")	same

#	Topic	Decision	By	Applied in
28	Staff profile & pay rate	Same: 3 years after the relationship ends.	**Attorney** ("same")	same
29	Contractor insurance certificates	3 years after the relationship ends (answer blank).	**Assistant**	same
30	Audit log & terms acceptance	5 years after the relationship ends (Florida 5-year limit for written contracts, s. 95.11(2)(b)).	**Assistant**	same
31	Prospects who never became clients	2 years after last contact.	**Assistant**	Privacy §5
32	Quote acceptances, SOWs, agreements	5 years after the client relationship ends (or after acceptance if no agreement).	**Assistant**	Privacy §5, Portal §3
33	Backups	Deleted data purged from backups within 30 days.	**Assistant**	Privacy §5
34	Existing 1099 hours/GPS data	Delete now.	**Assistant**	App task 3
35	FIPA measures for SSN in W-9	Encryption in transit and at rest plus encrypted W-9 PDF; access limited to admins (and the contractor); access logged; secure permanent erasure at end of retention.	**Assistant**	Privacy §6, Staff Terms B3

Client portal

#	Topic	Decision	By	Applied in
36	Days to sign agreement with price held	15 days after acceptance (quote itself valid 30 days).	**Assistant**	Portal §4, app task 12
37	Copy of acceptance	Always emailed immediately.	**Assistant**	Portal §3
38	Paper copy	Free.	**Assistant**	Portal §2
39	Record browser/ device	Yes.	**Assistant**	Portal §3, Privacy §2
40	Acceptance-record retention	5 years (see 32).	**Assistant**	Portal §3
41	Residential sales tax	Residential cleaning is not subject to Florida sales tax; 6% applies to non-residential cleaning (s. 212.05(1)(i)).	**Assistant**	Portal §4

Commercial Service Agreement & SOW

#	Topic	Decision	By	Applied in
42	Recommended commercial terms	Kept: 12-month initial term then month to month; 30-day termination for convenience after 90 days; net 15; 1.5%/month or max lawful; cap = 12 months of fees; mutual indemnity; $2,500 non-solicit fee; Collier County courts; prevailing-party fees; jury waiver.	**Assistant** (attorney delegated)	Agreement §§2–12
43	$2,500 non-solicit fee	Kept as liquidated estimate of recruiting/ training cost.	**Assistant**	Agreement §6
44	Jury waiver	Kept, bold all-caps.	**Assistant**	Agreement §12
45	Card surcharge	Up to 3%, as permitted by law and card network rules.	**Assistant**	Agreement §3
46	Background checks	Not guaranteed; available if agreed in the SOW at client's cost.	**Assistant**	Agreement §6
47	Electronic signature of agreement	Sufficient (typed name, email code, certificate page).	**Assistant**	Agreement §13, Portal §5
—	SOW defaults	Default holidays listed; 24-hour issue reporting and re-clean within 2 business days.	**Assistant**	SOW A2, A7

Privacy Policy

#	Topic	Decision	By	Applied in
48	DPAs with Supabase, Resend, Cloudflare	Rely on providers' standard data processing terms.	**Assistant**	Privacy §4
49	Other state privacy laws	Not applicable (Florida/US small business).	**Assistant**	Privacy §10
50	Age	18+ (B2B and adult workforce).	**Assistant**	Privacy §9
51	Response time for requests	30 days.	**Assistant**	Privacy §8
52	Staff data shared with clients	First name and last initial only, for site access.	**Assistant**	Privacy §4
53	Accountant / payroll provider	Named as recipients (by role).	**Assistant**	Privacy §4, Staff Terms C2

Prospect emails

#	Topic	Decision	By	Applied in
54	Physical address	Use 3727 Milano Lakes Cir (address of record); may switch to a registered P.O. box later.	**Assistant**	Footer D4
55	Advertisement line	Kept: "This message is an advertisement from Cid Clean LLC."	**Assistant**	Footer A
56	Texts / calls	No marketing texts or calls without prior express written consent (TCPA, Florida Telephone Solicitation Act).	**Assistant**	Footer D9

Independent Contractor Agreement (doc 6)

#	Topic	Decision	By	Applied in
—	Key terms	Right to decline jobs; contractor controls methods; own tools, supplies and phone; per-service pay, statements every 2 weeks, ACH within 7 days; W-9 before first payment; no insurance required unless a specific site needs it; app terms acceptance; confidentiality; photos admin-only; 12-month client non-solicit (s. 542.335); 3 written warnings then termination, plus immediate termination for serious misconduct; 7-day termination for convenience; Collier County courts, prevailing-party fees, jury waiver.	**Assistant** (owner-approved scope)	Doc 6

Interpreted answers to confirm with the attorney: #3 ("No really"), #7 ("No"), #13 ("Yes"), #27–28 ("same"). Spanish rev. 2 files are archived in /workspace/cidclean/archive_rev2/.